

GREENROOT v WEBSTER

25CV48032

DEFENDANT’S MOTION FOR TERMINATING SANCTIONS/ DEFENDANT’S MOTION TO EXPUNGE LIS PENDENS

This case involves a contract dispute concerning real property brought by Lorna Greenroot (“Plaintiff”) against Penelope Webster (“Webster.”) Now before the Court are two separate motions filed by Defendant: 1) Motion for Terminating Sanctions and 2) Motion to Expunge Lis Pendens. As the motions regard the same set of facts and procedural history, the Court will consider all both herein.

The motions are unopposed, which the Court notes may be “deemed a consent to the granting of the motion.” (Cal. Rules of Court, 8.54(c).)

I. Background

On September 8, 2025, the Court granted an Order (1) compelling Plaintiff to serve verified responses, without objection, to Special Interrogatories Set One, (2) compelling her to serve verified responses, without objection, to the Request for Production of Documents Set One, and produce all responsive documents, and (3) ordering her to pay sanctions in the amount of \$820. Plaintiff was to serve the responses and pay the sanctions by September 19, 2025. Plaintiff did not comply with this Order of the Court and has failed to provide either set of responses or pay sanctions. (Declaration of Michael Fluetsch (“Fluetsch Decl.”) ¶ 5.)

On September 25, 2025, the Court granted another Order (1) compelling Plaintiff to serve code-compliant responses to the Request for Production of Documents Set Two, and (2) ordering her to pay additional sanctions in the amount of \$660. Production and payment of sanctions were due by October 3, 2025. Plaintiff did not comply with this Order of the Court and has failed to provide the responses or pay sanctions. (Declaration of Michael Fluetsch (“Fluetsch Decl.”) ¶ 7.)

Plaintiff also has refused to sit for her deposition. On October 10, 2025, defense counsel served a “Notice of Taking Deposition of Plaintiff Lorna Greenroot and Request for Documents.” (Fluetsch Decl. ¶ 8, Ex. C.) Plaintiff failed to appear for her noticed deposition or produce the documents. (*Ibid.*) Defendant’s attorney sent a meet and

confer letter on October 29, 2025, asking her to comply with the Court's previous orders and inquiring about her failure to appear for the noticed deposition. (*Id.* ¶ 9, Ex. D.) Plaintiff did not respond to that letter. (*Id.* ¶ 10.)

II. Legal Standard and Discussion

It is a misuse of the discovery process to fail “to respond or to submit to an authorized method of discovery,” (Code Civ. Proc. § 2023.010(d)) or to disobey “a court order to provide discovery.” (Code Civ. Proc. § 2023.010(g).)

Under CCP § 2023.030, courts have the authority to issue monetary sanctions, evidentiary sanctions, or terminating sanctions after giving parties proper notice and the opportunity to be heard. Termination may be imposed as a sanction only after (1) a court order has been issued, compelling the party to comply with a discovery request; (2) the party has disobeyed the order; and (3) the party has been given an opportunity to be heard regarding the order. (*J.W. v. Watchtower Bible & Tract Society of New York, Inc.* (2018) 29 Cal. App. 5th 1142, 1167.) A terminating sanction is appropriate only when a party's failure to obey a court order prejudiced the opposing party. (*Morgan v. Ransom* (1979) 95 Cal. App. 3rd 664, 669.)

Failure to respond to discovery and to comply with a judge's court orders compelling discovery are sufficient to impose a terminating sanction. (*Jerry's Shell v. Equilon Enterprises, LLC* (2005) 134 Cal. App. 4th, 1058, 1069.) Further, if the party has committed severe discovery abuses, a judge's denial of terminating sanctions may be an abuse of discretion. (*Doppes v. Bentley Motors, Inc.* (2009) 174 Cal. App. 4th 967, 992.)

This court issued an order granting Defendant's motion to compel responses to written discovery requests on September 8, 2025. Plaintiff has disobeyed that order. Plaintiff did not request a hearing on the tentative ruling granting the motion to compel. Plaintiff has neither provided any responses nor sought any kind of additional extension.

Plaintiff repeated her discovery misconduct after the Court's September 25, 2025, Order compelling her to respond to additional discovery and pay sanctions. Once again, plaintiff disobeyed the order. Plaintiff did not request a hearing on the tentative ruling granting the motion to compel, and has neither provided any responses nor has she sought any kind of additional extension.

Plaintiff has also failed to appear for a properly noticed deposition or to respond to defense counsel's inquiries about the same.

Plaintiff has had ample time to respond to the discovery requests and to comply with this Court's Orders or seek relief therefrom. Plaintiff's failure to respond and to comply with this Court's Orders, and to appear for deposition, has prejudiced Defendant who is unable to move forward with this case without Plaintiff's participation. Nor has Plaintiff filed any opposition to the instant motion setting forth any reasons for her continued disobedience of Court Orders or her willful failure to engage in the discovery process. The Court views these actions in tot as willful disregard of her discovery obligations and willful disregard for this Court's Orders.

In light of the above, the **Court GRANTS Defendant's motion. The Court orders that Plaintiff's Third Amended Complaint be dismissed.**

B. MOTION TO EXPUNGE

"At any time after notice of pendency of action has been recorded, any party, or any nonparty with an interest in the real property affected thereby, may apply to the court in which the action is pending to expunge the notice." (Code Civ. Proc. § 405.30.) The Court shall order the notice expunged if it "finds that the pleading on which the notice is based does not contain a real property claim." (Code Civ. Proc. § 405.31.)

The Court has granted the motion for terminating sanctions and ordered Plaintiff's TAC to be dismissed. Accordingly, there is no pleading containing a real property claim upon which the notice is based.

The motion to expunge lis pendens is **GRANTED**.

The clerk shall provide notice of this ruling to the parties forthwith. Defendant to submit formal Orders complying with Rule 3.1312 in conformity with this Ruling.